

Tentative Rulings for July 10, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2403844	SHEPHERD VS FCA US, LLC	MOTION TO SET ASIDE DISMISSAL ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY UNDER SECTION 473(B) AND REINSTATE CASE BY DAVID WAYNE SHEPHERD, HEATHER O'DONNELL

Tentative Ruling: A motion to set aside pursuant to 473(b) for discretionary relief is available not just from defaults, default judgments, and dismissals, but may also apply to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

An application for mandatory relief based on an attorney affidavit of fault must be made “no more than six months after entry of judgment.” (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.)

Mandatory relief only applies to defaults and dismissals and is not available for acts resulting in a judgment against the client such as (1) failing to oppose a dispositive motion (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 148-149), (2) failure to meet the burden of proof (*Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1397), (3) failure to disclose an essential witness (*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 484), or (4) failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321).

In this matter, Plaintiff’s motion references Mr. Brummel’s statement as a mistake/misrepresentation of the readiness of Plaintiff’s counsel on the trial date of February 25th. However, the motion fails to address the failure of Plaintiff’s attorneys to comply with Local Rule 3401, which was brought up by the court on February 6th, 20th and 23rd. In its minutes on February 25th, this court gave a procedural history of the attorneys for Plaintiff’s actions, including failure to comply with Local Rule 3401 as well as provide an answer as to whom the trial attorney was in this case. For reference, the relevant portions of the court’s minutes from the February 25th trial date are listed below:

On Court’s own motion, the matter was dismissed for failure to prosecute. The court notes that upon trial call, Plaintiff’s counsel Mr. Brummel announced he was not ready and that the assigned attorneys were engaged in other trials. On the original trial call of 2.06.26, Mr. Brummel indicated to the court that the assigned attorney, David Lunn, was engaged in trial and therefore unavailable. The court instructed Plaintiff to comply with Local Rule

3401 as the court had not received several documents prior to the trial call, this was also reported by defense attorney Mr. Muhammad. The court permitted a two-week continuance to February 20th, 2026, informing Mr. Brummel he was to submit a declaration indicating availability of trial counsel as well as address the deficiencies in complying with LR 3401. On 2.17.26, the court received a notification that Plaintiff had a change of attorney, listing Larry Chae and Breana Rucker as the attorneys of record. Subsequently, Mr. Lunn submitted a declaration with the court on 2.19.26 indicating he, Mr. Chae, and Mr. Arabi (previously listed as attorney for Plaintiff's before this matter was set for trial) were unavailable. On 2.20.26, prior to the trial call, Ms. Rucker filed a declaration stating she was assigned exclusively to pre-trial matters and did not serve as trial counsel. On the trial call for 2.20.26, Mr. Brummel reiterated the contents of the attorneys' declarations. He also was unable to provide to the court an explanation as to why the matter was assigned to another attorney (Mr. Chae) for trial purposes and 2 days later that attorney submitting a declaration stating they were unavailable. Additionally, on the 20th, no declaration or documentation addressing Local Rule 3401 was submitted. The court instructed the parties the matter would be called on Monday 2.23.26, to confirm the availability of Mr. Muhammed as he had two matters out of county pending trial call. On Monday, February 23rd, the trial was called for the third time, with defense Mr. Muhammad announcing ready and Mr. Smith on behalf of Plaintiff indicating to the court they did not have any updated information about availability of the trial attorneys. Both parties were instructed to come to court on February 25th, ready to proceed for trial. After Mr. Brummel informed the court that Plaintiff's were not ready to proceed and defense attorneys Mr. Muhammad and Ms. Hawkanson (sic) were ready to proceed on behalf of Defendant, the case was dismissed without prejudice.

The consistent disregard of the court's order regarding Local Rule 3401, and the failure of Plaintiff's counsel to provide an attorney ready to proceed for trial over multiple dates, does not warrant mandatory relief, as distinguished by the failure of an attorney to pay a venue transfer fee, the basis of *Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, cited by counsel for Plaintiff. For the above reasons mandatory relief is denied. Discretionary relief is denied on the same basis.

Motion to Set Aside Dismissal is DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504788	PRALLE VS BANK OF AMERICA	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY CATHERINE PRALLE

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).)

Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Plaintiff's attorney has not complied with the mandatory requirements under California Rule of Court 3.1324, including failing to identify specifically the changes to the FAC, addressing when the facts pertaining to the proposed SAC were discovered and why the amendment was not submitted earlier.

Motion for Leave to File Second Amended Complaint DENIED.

Case Management Conference and OSC continued to 9.14.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508414	MAUL VS VERISMA SYSTEMS, INC.	MOTION TO DISMISS COMPLAINT OF KIMBERLY MAUL BY VERISMA SYSTEMS, INC.

Tentative Ruling: CCP section 418.10(a)(2) provides that “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:... (2) To stay or dismiss the action on the ground of inconvenient forum. Further, section 418.10(e)(3) provides that “[f]ailure to make a motion under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution.” (CCP §418.10(e)(3).)

CCP section 410.30 provides “[w]hen a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (CCP §410.30(a).) Further, section 410.30 provides that “418.10 do[es] not apply to a motion to stay or dismiss the action by a defendant who has made a general appearance.” (CCP §410.30(b).)

Plaintiff asserts that pursuant to the language in section 418.10(a)(2) this motion is untimely because it was filed after the time to plead had passed. However, Defendant has entered a general appearance in this matter, therefore, section 418.10(a)(2) does not apply, pursuant to the provisions in section 410.30(b). Accordingly, a motion to dismiss by Defendant, pursuant to CCP §410.30(a) would not be untimely. However, Defendant incorrectly moved pursuant to CCP §418.10(a)(2), which does not apply once a general appearance has been entered. Further, the moving papers do not address why the interests of substantial justice would be served by having the matter heard in Georgia.

Motion to Dismiss for Improper Venue DENIED.

Case Management Conference continued to 8.19.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address

whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case, including issues with forum if still pending, and any other issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES BY DOUGLAS E. FIERBERG, RACHAEL J. DENHOLLANDER, CARI S. SIMON, JACOB R. GOODMAN

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) Here, there is no dispute that Fierberg Defendants are the prevailing party, and as such, entitled to attorneys' fees and costs.

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong" ["]—meaning that it abused its discretion. [Citations.]" (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (Id at 1096.) Defense counsel requests hourly rates of \$1,019 and \$1,227, which counsel claims are consistent with the Laffey Matrix based on rates for Washington D.C. (Decl. of Lupton, ¶15.) These rates are substantially higher than the market rate for Riverside County. The court reduces rates to \$700 each for attorneys Waxler and Lupton.

Plaintiff argues that the hours claimed by counsel are also excessive. The fee award is limited to fees and costs incurred on the special motion to strike, and not the

entire litigation. (See *S. B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381; 569.) The fee award may not include matters unrelated to the anti-SLAPP motion, such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research or attending a mandatory case management conference. (569 *East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The fee award is designed to “reimburse the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit [citation omitted] rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (Id, emphasis in original.)

The Fierberg Defendants requests fees for 106.8 hours, including those anticipated for the Reply and hearing on the fee motion. The majority of the hours billed were necessary for the Anti-SLAPP Motion or present fee motion. The Motion for Reconsideration was a challenge to the ruling on the Anti-SLAPP motion. Therefore, the fees incurred in opposing the Motion were necessary to the Anti-SLAPP Motion. However, the fees for the initial investigation of the action, investigation of the assigned judge and new judicial assignment, emails regarding service issues, the initial case report and case budget report were incurred in the defense of the lawsuit generally rather the Anti-SLAPP Motion specifically. Therefore, the fee award is reduced by 5.5 hours. Furthermore, there are invoices that include 1.7 hours billed by Sara LeBlanc on January 22, 2026 which are entirely redacted. Because it is not clear whether these entries involve the Anti-SLAPP Motion, they are stricken. The 2.0 hours for attending the hearing for motion for attorney’s fees shall be reduced to 1.0 hour. Defendants concede that the hearing on the Motion for Reconsideration did not occur, therefore those 2.0 hours are withdrawn as noted in Defendants’ Reply. Although the hours incurred in drafting and revising briefs are somewhat high, Plaintiff has not established that they are entirely unreasonable.

The Fierberg Defendants also request \$3,604.93 in costs. Plaintiff challenges court reporter fees (\$895) and reporter’s transcript (\$118.05) totaling \$1,013.05. Under CCP §1033.5, court reporter fees may be recoverable as costs as established by statute. (CCP §1033.5(a)(11).) Transcripts of court proceedings are not recoverable if not ordered by the court. (CCP §1033.5(b)(5).) Defendants have not established that these provisions do not apply to the recovery of costs under the anti-SLAPP statute. Since a court reporter was not ordered, these costs are stricken.

Defendants’ Request for Judicial Notice DECLINE to RULE.

Motion for Attorney’s Fees and Costs GRANTED in PART.

Award of \$67,620 in fees (\$700/hr x 96.6 hours).

Award of \$2591.88 in costs.

Total award of \$70,211.88.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES BY DEFENDANT JANE DOE

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) The fee award is limited to fees and costs incurred on the special motion to strike, and not the entire litigation. (See *S. B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381; 569.) The fee award may not include matters unrelated to the anti-SLAPP motion, such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research or attending a mandatory case management conference. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The fee award is designed to "reimburse the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit [citation omitted] rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (Id, emphasis in original.)

Prevailing Party Analysis:

Generally, voluntary dismissal of a lawsuit terminates the trial court's jurisdiction over the matter." (*O'Dell v. Freightliner Corp.* (1992) 10 Cal.App.4th 645, 659.) If a plaintiff dismisses the action while anti-SLAPP motion is pending, the trial court is given the limited jurisdiction to determine whether the attorney's fees are proper. (*Law Offices of Andrew L. Ellis v. Yang* (2009) 178 Cal. App. 4th 869, 878-879.) "[A] defendant who is voluntarily dismissed, with or without prejudice, after filing a section 425.16 motion to strike, is nevertheless entitled to have the merits of such motion heard as a predicate to a determination of the defendant's motion for attorney's fees and costs under subdivision (c) of that section." (*Liu v. Moore* (1999) 69 Cal. App. 4th 745, 751.) Before awarding fees and costs, the court must determine whether the defendant would have prevailed on his or her anti-SLAPP motion. (*Tourgeman v. Nelson & Kennard* (2014) 222 Cal.App.4th 1447, 1457.) Doe is entitled to a determination of her Anti-SLAPP Motion for the purpose of establishing prevailing party status under the anti-SLAPP statute.

In applying the anti-SLAPP statute, the Court engages in a two-step process: first, the moving defendant must demonstrate that the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech. (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal. 4th 728, 733.) Once such a prima facie showing has been made, the court then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. (Id.) The court does not weigh the credibility or comparative probative strength of competing evidence, but should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal. App. 4th 1027, 1044.) The anti-SLAPP statute should be construed broadly in favor of the exercise of freedom of speech. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1119.)

The parties do little to address the issue of the merits in connection with the fee motion. Instead, they rely on the Anti-SLAPP Motion itself. Pursuant to her Anti-SLAPP Motion, Doe argued that this lawsuit meets the first prong of the anti-SLAPP statute because it is based on the filing of a lawsuit and a prelitigation demand letter. Plaintiff did not oppose the Motion.

“To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the allegedly wrongful and injury-producing conduct, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387.) Litigation related conduct and communications, including filing, funding, prosecuting, and defending a lawsuit are protected activity under CCP § 425.16 (b)(1). (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113.) The courts have “[r]ecognized petitioning activities thus include not only the conduct of litigation but also acts and communications reasonably incident to litigation, including prelitigation settlement negotiations.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1025.) Prelitigation statements generally fall within CCP § 425.16(e)(1) and (2). (*Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 377.) “Ordinarily, a demand letter sent in anticipation of litigation is a legitimate speech or petitioning activity that is protected under section 425.16.” (*Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1293.)

Plaintiff’s causes of action are based on the contents of a prelitigation letter sent by counsel or on this letter and the filing of a lawsuit by Doe in Los Angeles County. (Complaint, ¶¶ 60, 68, 69, 75, 77, 84, 91, 92, 97, 98, and 107.) The Court previously determined that this conduct has satisfied the first prong of the anti-SLAPP statute in granting the Fierberg Defendants’ Anti-SLAPP Motion. The same analysis applies here. Doe has established that the Complaint involves protected activity.

Doe asserts that Plaintiff cannot meet the second prong of the statute because Plaintiff’s claims are barred by the litigation privilege and fail as a matter of law. The litigation privilege applies “to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) “The privilege is absolute and applies regardless of malice. However, the privilege does not apply to malicious prosecution actions.” (*Malin, supra*, 217 Cal.App.4th at 1300.) Prelitigation communications also fall within the litigation privilege, if they relate to litigation contemplated in good faith and under serious consideration. (*Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Good faith requires a connection or logical relationship between the prelitigation communication to a contemplated action and the communication is made to achieve the objects of litigation. (*Id.*) A prelitigation settlement demand that relates to litigation threatened by an individual, where the statements in the letter bear a connection or relationship to the proposed litigation and pertains to settlement, meets these requirements. (*Flickinger v. Finwall* (2022) 85 Cal. App. 5th 822, 840.)

In this case, the first cause of action is based entirely on the prelitigation letter. The second, third, fourth, fifth, sixth, and seventh causes of action are based on the prelitigation letter and the filing of the sexual battery lawsuit. (Complaint, ¶¶ 60, 68, 69, 71, 75, 77, 84, 91, 92, 97, 98, and 107.) The litigation privilege applies to the filing of the lawsuit. Therefore, Plaintiff’s claims fail to the extent that they are based on the filing. Moreover, the prelitigation settlement letter was sent for settlement purposes. (RJN, Ex.

CC. Ex. O.) As such, the claims based on the prelitigation settlement letter are also barred. Plaintiff also has not produced any evidence in opposition to the Anti-SLAPP Motion. Accordingly, Doe has established that she would have prevailed on the merits of the Anti-SLAPP Motion. As such, she is entitled to fees and costs.

Fee Award Analysis:

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) “The “experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong” [’]—meaning that it abused its discretion. [Citations.]” (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Id at 1096.) Counsel asserts that his customary hourly rate is \$550. (Decl. of Simon, ¶ 11.) This rate is reasonable for similar work in Riverside County.

Counsel for Doe vaguely claims that he incurred 25 hours in connection with the Anti-SLAPP Motion and six hours in connection with the present Motion. (Decl. of Simon, ¶¶12, 13.) He spent an additional six hours reviewing the Opposition and drafting the Reply. (Supp. Decl. of Simon, ¶6.) Counsel did not provide billing records or other evidence to support these contentions.

Plaintiff argues that the hours claimed by counsel are also excessive and unsupported by evidence. An attorney’s testimony as to the number of hours incurred may be sufficient to support a fee award without detailed time records. (*Steiny & Co. v. Cal. Elec. Supply Co.* (2000) 79 Cal. App. 4th 285, 293.) However, a general explanation of the extent or nature of services rendered is insufficient. (*Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559-560.) Because the defendant bears the burden of establishing that fees were associated with the anti-SLAPP motion and documenting the appropriate hours, the court may require the defendant to produce records sufficient to provide a proper basis for determining the reasonableness of the fee request. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal. App. 4th 993, 1020.)

Based on the Declaration of counsel it is impossible to determine whether the hours incurred were reasonable and related to the Anti-SLAPP motion rather than the lawsuit more generally.

Defendant Jane Doe’s Motion for Attorney Fees and Costs is continued to 9.01.26.

The court finds that Jane Doe would have prevailed on the merits of the Anti-SLAPP motion and that she is entitled to attorney fees and costs.

Attorney Kline is ordered to submit additional evidence describing the tasks performed and the amount of time spent, in relation to Jane Doe's Anti-SLAPP motion.

Plaintiff may file an updated opposition, no later than 10 court days prior to the continued hearing date.

No other briefing shall be permitted.